

25SMCV00226 25SMCV00226

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-09-18

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Case Number: 25SMCV00226 Hearing Date: September 18, 2026 Dept: N

CONTINUE

Plaintiff must provide further briefing as to why the request for \$768,333.56 in medical damages is reasonable. According to Plaintiff, the total medical bills amounted to \$766,905.62. Plaintiff's insurance paid \$155,492.73 of the total bill, Plaintiff paid \$858.36 out of pocket, and the hospital wrote off \$584,745.14 as contractual adjustments. An outstanding balance of \$25,809.39 remains.

First, explain the inconsistency between the request for \$768,333.56 and the medical bills of \$766,905.62.

Second, in *Howell v. Hamilton Meats & Provisions, Inc.*, the Court held that "an injured plaintiff whose medical expenses are paid through private insurance may recover as economic damages no more than the amounts paid by the plaintiff or his or her insurer for the medical services received or still owing at the time of trial." (*Howell v. Hamilton Meats & Provisions, Inc.* (2011) 52 Cal. 4th 541, 566.) The California Supreme Court concluded that "the negotiated rate differential—the discount medical providers offer the insurer—is not a benefit provided to the plaintiff in compensation for his or her injuries." (*Ibid.*) In light of the Supreme Court's ruling, explain why Plaintiff is entitled to \$768,333.56 in medical damages.

Plaintiff must submit a revised and complete CIV-100, ensuring that the "Credits acknowledged" and "Balance" columns and Paragraphs 4 and 5 are filled out.